

Soumen Sen vs National Commission For Women (Ncw) on 17 October, 2018

CENTRAL INFORMATION COMMISSION

(Room No.313, CIC Bhawan, Baba Gangnath Marg, Munirka, New Delhi-110067)

Before Prof. M. Sridhar Acharyulu (Madabhushi Sridhar), CIC

CIC/NCFW0/A/2017/191483

Soumen Sen v. PIO, National Commission for Women

Order Sheet: RTI filed on 26.06.2016, CPIO reply - Nil, FAO - Nil, Second appeal filed on 01.12.2016, Hearing on 03.05.2018;

Proceedings on 08.05.2017: Appellant present, Public authority represented by Shri G. Nagarajan, CPIO & US, Ms. Anisha Dawar, JTE and Shri Varun Chhabra, Counsellor. Direction and Show Cause issued.

Proceedings on 03.05.2018: Appellant absent, Public Authority represented by CPIO, Ms. K Lalita, Anshuman Mandal, CPIO & joint Secretary, DVC Kolkata and Ms. Nafisav Bhanu, deputy director (HR), DVC from NIC Kolkata:

Date of Decision - 16.10.2018: Penalty imposed and compensation allowed.

ORDER

FACTS:

1. The appellant sought information about how many sexual harassment cases at workplace in Damodar Valley Corporation (DVC) which is under Ministry of Power, Government of India, are intimated as per records to NCW since 2012 to till the date of RTI application, how many of them are solved or pending; whether the case against Shambhu Das, Assistant Engineer, Communication Dept., DVC, Maithon filed on 16/03/2012 has been recorded in NCW from the yearly report submitted by DVC; what are the procedures maintained and implemented in this case and what is the present status of the case. Since there was no response either from CPIO or FAA, the appellant approached this Commission.

2. The Commission's order dated 12.05.2017:

2. Appellant and his wife were present during video-conferencing. They alleged that the authorities in DVC are trying to conceal the facts in order to support the accused till date no information either from Damodar Valley Corporation or from National Commission for Women was received. In addition, they stated that an internal committee headed by Dr. Neetu Singh, Chairperson had been constituted and prima facie inquiry was completed in the month of January 2013. Surprisingly and for the

reasons best known to them, the Committee was reconstituted several times. The appellant claimed the victim had a right to copy of preliminary report, speedy completion of the inquiry, and action against the culprit besides right to know the action, both CIC/NCFWO/A/2017/191483 Page 1 under RTI Act and also under the Prevention of Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013.

3. The Prevention of Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, Section 9 says:

Any aggrieved woman may make, in writing, a complaint of sexual harassment at workplace to the Internal Committee if so constituted, or the Local Committee, in case it is not so constituted, within a period of three months from the date of incident and in case of a series of incidents, within a period of three months from the date of last incident:

4. Section 11 says:

Subject to the provisions of Section 10, the Internal Committee or the Local Committee, as the case may be, shall, where the respondent is an employee, proceed to make inquiry into the complaint in accordance with the provisions of the service rules applicable to the respondent and where no such rules exist, in such manner as may be prescribed or in case of a domestic worker, the Local Committee shall, if prima facie case exist, forward the complaint to the police, within a period of seven days for registering the case under Section 509 of the Indian Penal Code, 1860 (45 of 1860), and any other relevant provisions of the said Code where applicable:

Provided further that where both the parties are employees, the parties shall, during the course of inquiry, be given an opportunity of being heard and a copy of the findings shall be made available to both the parties enabling them to make representation against the findings before the Committee.

5. This section gives appellant (a) a right to know whether a criminal complaint is forwarded, (b) right to be heard and (c) right to copy of the findings, all of which were ignored by this public authority. The public authority has an obligation to forward complaint within 7 days for registration of crime/criminal complaint against accused. Here in this case, she should have been informed whether her complaint was forwarded, within seven days, either before or after preliminary inquiry.

6. Section 12 says:

12(1).During the pendency of an inquiry on a written request made by the aggrieved woman, the Internal Committee or the Local Committee, as the case may be, may recommend to the employer to-

- (a) Transfer the aggrieved woman or the respondent to any other workplace, or
- (b) grant leave to the aggrieved woman up to a period of three months; or
- (c) grant such other relief to the aggrieved woman as may be prescribed.

In the absence of copy of the findings, it is not possible for her to exercise the rights envisaged in Section 12.

7. Section 13 deals with the inquiry report.-

CIC/NCFWO/A/2017/191483 Page 2 13(i) On the completion of an inquiry under this Act, the Internal Committee or the Local Committee, as the case may be, shall provide a report of its findings to the employer, or as the case may be, the District Officer within a period of ten days from the date of completion of the inquiry and such report be made available to the concerned parties.

(ii) Where the Internal Committee or the Local Committee, as the case may be, arrives at the conclusion that the allegation against the respondent has not been proved, it shall recommend to the employer and the District Officer that no action is required to be taken in the matter.

(iii). Where the Internal Committee or the Local Committee, as the case may be, arrives at the conclusion that the allegation against the respondent has been proved, it shall recommend to the employer or the District Officer, as the case may be.

a. to take action for sexual harassment as a misconduct in accordance with the provisions of the service rules applicable to the respondent or where no such service rules have been made, in such manner as may be prescribed;

b. to deduct, notwithstanding anything in the service rules applicable to the respondent, from the salary or wages of the respondent such sum as it may consider appropriate to be paid to the aggrieved woman or to her legal heirs, as it may determine, in accordance with the provisions of Section 15:

Provided that in case the employer is unable to make such deduction from the salary of the respondent due to his being absent from duty or cessation of employment it may direct to the respondent to pay such sum to the aggrieved woman:

Provided further that in case the respondent fails to pay the sum referred to in clause (ii), the Internal Committee or, as the case may be, the Local Committee may forward the order for recovery of the sum as an arrear of land revenue to the concerned District Officer.

(iv) The employer or the District Officer shall act upon the recommendation within sixty days of its receipt by him.

8. The expressions 'findings' include preliminary and final findings in Report and it should be furnished within ten days. This gives a statutory right to the victim-appellant to get the findings within 7 days.

9. Section 16 says:

Notwithstanding anything contained in the Right to Information Act, 2005, the contents of the complaint made under section 9, the identity and addresses of the aggrieved woman, respondent and witnesses, any information relating to conciliation and inquiry proceedings, recommendations of the Internal Committee or the Local Committee, as the case may be, and the action taken by the employer or the District Officer under the provisions of this Act shall not be CIC/NCFWO/A/2017/191483 Page 3 published, communicated or made known to the public, press and media in any manner:

Provided that information may be disseminated regarding the justice secured to any victim of sexual harassment under this Act without disclosing the name, address, identity or any other particulars calculated to lead to the identification of the aggrieved woman and witnesses.

10. The information pertaining to workplace sexual harassment shall not be subject to the provisions of the Right to Information Act, 2005 only to the extent that it should not be disclosed to the public, press and media in any manner. This is done in order to secure privacy, security and dignity of the appellant. The information should not find way to media which might sensationalize the sensitive issue of suffering of a woman and the harassment would be multiplied and hence the identity and addresses of the appellant, respondent witnesses, any information relating to conciliation and inquiry proceedings, recommendations of the internal committee and the action taken are concerned are protected from media. If a third person wants to know the detailed information about sexual harassment, this provision could be used to deny. But it cannot be denied to the appellant. It is a deliberate misreading of provision of law to harass the appellant and deny her right to information about action on her own complaint.

11. This section states that the information regarding the justice secured to any victim of sexual harassment under this Act may be disseminated without disclosing the name, address, identity or any other particulars calculated to lead to the identification of the aggrieved woman and witnesses.

12. Section 19 explains the duties of employer.-

Every employer shall: (i) provide a safe working environment at the workplace which shall include safety from the persons coming into contact at the workplace;

(vii) provide assistance to the woman if she so chooses to file a complaint in relation to the offence under the Indian Penal Code(45 of 1860) or any other law for the time being in force;

(viii) cause to initiate action, under the Indian Penal Code, 1860 (45 of 1860) or any other law for the time being in force, against the perpetrator, or if the aggrieved woman so desires, where the perpetrator is not an employee, in the workplace at which the incident of sexual harassment took place;

(ix) treat sexual harassment as a misconduct under the service rules and initiate action for such misconduct; x. monitor the timely submission of reports by the Internal Committee.

13. Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Rules, 2013 Rule VII (iii) says:

(iii) The respondent shall file his reply to the complaint along with his list of documents, and names and addresses of witnesses, within a period not exceeding ten working days from the date of receipt of the documents specified under sub-rule (1).

(iv) The Complaints Committee shall make inquiry into the complaint in accordance with the principles of natural justice.

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14. The disclosure of preliminary / interim inquiry report to the victim is important for the aggrieved woman to exercise all other rights in terms of section 12 and other provisions in better manner, which were denied to appellant in this case.

15. In the instant case, the denial by the CPIO was not based on anything.

The PIO has failed to discharge the burden placed upon him under Section 19(5) of the RTI Act. They did not bother to give any reasons, which give rise to suspicion that it was deliberately denied.

16. Very purpose of providing a specific right to copy of inquiry report under Section 13 of Act of 2013 was to help the women-victims from tactics of other officers acting together to deny the information and remove the chances of appeal against. Thus the two enactments, the Right to Information Act and Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 provided her with the right to inquiry and reports, but this woman, who complained against the sexual harassment was denied these two rights. If the allegation is proved in preliminary inquiry, the authority has a duty to take further action, forward the criminal complaint to the police, give remedy to the victim, either transferring her or transferring the accused. And if not proved, the appellant should be informed about and facilitate her to exercise the right of appeal to an appropriate forum.

17. The appellant alleged bias of CPIO and some officers of public authority in favour of the accused. The appellant suffers the risk of dismissal of appeal at threshold, if appeal is filed beyond the period of limitation, and thus the public authority caused detriment to the victim as far as her right to appeal is concerned. To that extent it also amounts to deprivation of her right to information that

was delayed unduly beyond 60 days.

18. The conduct of both the CPIO and the First Appellate Authority is highly unbecoming of their senior status in public authority and also to their responsibility as designated officers under Right to Information Act.

Life & Liberty Angle

19. The Commission examined if the present request under RTI pertains to life and liberty of the appellant. It is pertinent to note that the appellant was seeking information about inquiry into her complaint of sexual harassment at workplace. When Chief Justice J.S. Verma was working on the required law to deal with complaints of Sexual Harassment at the Workplace (SHW), he drew support from the Convention on Elimination of Discrimination against Women (CEDAW) as explained in Vishaka's case (Vishaka v. State of Rajasthan, AIR 1997 SC 3011: (1997) 6 SCC 241). Recognizing aspects of 'Gender Equality' into the 'Right of Life and Liberty' he stated:

"Each such incident results in violation of the fundamental rights of 'Gender Equality' and the 'Right of Life and Liberty' The fundamental right to carry on any occupation, trade or profession depends on the availability of a safe working environment. Right to life means life with dignity. The primary responsibility for ensuring such "safety" and dignity through suitable legislation, and the creation of a mechanism for its enforcement, is of the legislature and the executive..."

20. In Apparel Export Promotion Council v. A.K. Chopra, AIR 1999 SC 625, the Supreme Court reiterated the Vishakha ruling and observed that:

CIC/NCFWO/A/2017/191483 Page 5 "There is no gainsaying that each incident of sexual harassment, at the place of work, results in violation of the Fundamental Right to Gender Equality and the Right to Life and Liberty the two most precious Fundamental Rights guaranteed by the Constitution of India.... In our opinion, the contents of the fundamental rights guaranteed in our Constitution are of sufficient amplitude to encompass all facets of gender equality, including prevention of sexual harassment and abuse and the courts are under a constitutional obligation to protect and preserve those fundamental rights. That sexual harassment of a female at the place of work is incompatible with the dignity and honour of a female and needs to be eliminated...."

21. Through its analysis, the Court concluded that sexual harassment in the workplace is a violation of women's human rights and fundamental right under Constitution of India, specifically:

Article 21: Right to 'life and personal liberty' besides, Article 14:

Equality before the law, Article 15: Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth and Article 19 (1)(g): Right to practice one's profession, or to carry on any occupation, trade or business.

22. Thus, Vishaka judgment acknowledged any sexual harassment at work place as a human rights violation which causes infringement of life and dignity of victim and enactment of Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 with an objective of providing protection to women against sexual harassment at workplace, this right was accorded a legal status. Thus, information sought in this case relating to complaint of sexual harassment at workplace can be treated as one concerning threat to her life and liberty as mentioned in section 7(1) of RTI Act, considering the fact that 'threat to dignity of women at workplace' is nothing less than a threat to her life and liberty in view of seriousness of mental or physical harassment she undergoes. The public authority should have provided the copy of inquiry report considering this as concerning life and liberty of the appellant within 10 days as per Section 13 of Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, if not in 48 hours, or at least in 30 days as prescribed under section 7(1) of RTI Act. Information sought by the appellant/appellant of sexual harassment relating to inquiry report etc. has to be classified as information related to life and liberty, because both of these rights are threatened by sexual harassment.

23. Thus, the appellant was deprived of her right to information which was guaranteed to her under two Acts i.e., Right to Information Act and Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013. Each officer, who obstructed furnishing of information to the appellant-victim should be liable for action for violating both of these Acts, which formed foundation of this appeal. The Commission considers that the complaint is established and finds there is a strong need to initiate penal proceedings under section 20 of RTI Act.

24. The Commission accordingly directs the CPIO, National Commission for Women and the CPIO, DVC to show-cause why maximum penalty should not be imposed upon each of them for obstructing the information to the appellant, before 30th May 2017. The Commission also CIC/NCFWO/A/2017/191483 Page 6 directs the authorities of DVC to explain why it should not be directed to pay compensation to the appellant, before 30th May 2017.

25. The Commission directs the authorities of Damodar Valley Corporation to provide point-wise information to the appellant, before 30th May, 2017. In addition, the Commission also suggests Ms. Paromita Banerjee Sen to file a comprehensive complaint before the authorities of DVC against alleged bias against her and favour to accused, to which he DVC shall provide their response/action taken before 30th May, 2017.

Analysis

3. The appellant vide letter dated 29.09.2017, submitted to the Commission as under:-

- 1) This case of Sexual Harassment in DVC (Damodar Valley Corporation) filed on 16.03.2012 is delayed more than 5 (five years) before the old and New Committee Reconstituted under the purview of the Act but till date no prima facie report has been furnished.

- 2) As per the RTI Act there was deliberate suppression of facts in this case and facts were concealed by both NCW and DVC because none of them bothered to give the information within the stipulated time.
- 3) As per your interim order, my wife Paromita had informed the DVC authority about the biased lobby but no response from their side.
- 4) As regards to the 29 pages sent by DVC, there is a deliberate intention of suppression of some missing documents.
- 5) As regards to the new Committee formed at Maithon, The Chairperson, Mrs. Cosmonotika Bharati is looking after this case since 29.8.2017 but till date no outcome is arrived at, even though the case was forwarded to her at Kolkata in 2013 and she was a significant post holder of Committee at Kolkata in 2013.
- 6) As regards to the Complaint of Sexual Harassment at Workplace, Paromita is facing a series of transfer orders because she had not withdrawn her complaint dated 16.03.2012 wherein she had already mentioned that the accused has threatened her about transfer.

Firstly, posting at Kalyaneswari S/s in 2012 which got cancelled in 2013 due to the intervention of the Committee Chairperson, Dr. Neetu Singh then.

Secondly, again at Kalyaneswari S/S which was to come by passing the Chief Engineer (Commn) but it did not come into effect in 2016.

Thirdly, She made the series of actions of biased lobby known upwards, the biased lobby (actually the chief Engineer again bypassed) in full action has brought out her transfer order to Mejia Thermal Power Station (MTPS), being a long distance from Maithon and in pregnant condition when they were aware that she had a miscarriage previously and all because she had made the entire matter known to highest authority.

CIC/NCFWO/A/2017/191483 Page 7 Here it may be brought to your kind notice that such transfer though projected out to be normal are actually a result of conspiracy because all technical staff are well settled in their place of posting of more than 10 years and 20 years etc. and none is being disturbed like her in staff cadre and if anybody is shifted it is on his due consent but not like her abnormal transfer in Corporation interest.

7. Lastly, Paromita has been debarred from her promotion this year unduly due to the biased lobby again and Mr. Sambhu Das had not only being promoted unduly in 2013 as EE (Commn), even though the case was pending since 2012 he has been posted in his favourite place of posting since 2015 and going to get another promotion shortly. The biased lobby is in full action to declare the case null and void and harass Paromita in all aspects throughout her service life and pay the price of complaining against her superior bosses and biased lobby.

As a deprived women's husband and being an Indian citizen, I would earnestly request you to kindly issue the final order as it is already quite late and justice delayed is justice denied, on humanitarian ground and as a threat to life and dignity of my wife.

4. Mr. G. Nagarajan, Under Secretary and CPIO, NCW, vide letter dated 30.05.2017, submitted to the Commission as under:-

In response to the show-cause notice, the details of the information provided in this case are as under:

The RTI application dated 26.06.2016 received from the appellant on 30.06.2016.

The RTI application was transferred to the DVC on 01.07.2016 in respect of point no. 2 to 5.

In respect of point no. 1 and 6, a reply was provided on 18.11.2016. First appeal was filed dated 01.08.2016 was received on 08.08.2016. FAA replied the appellant on 23.08.2016.

The information as available in the Commission has since been provided to the appellant. The information other than points 1 and 6 are to be provided by PIO, DVC.

2. It is pertinent to mention here that National Commission for Women is not a monitoring authority of Sexual Harassment Cases. Therefore, NCW has not received any details of such cases either from DVC or any other institutions. Once, NCW received the RTI application on 30.6.2016, NCW has promptly acted upon that and as per the provisions of Section 6(3) of the RTI Act, 2005 transferred the application to the public authority concerned i.e. Damodar Valley Corporation on 1.7.2016 itself. Hence, there is no delay on the part of the NCW. However, considering the serious nature of the issue, CPIO, DVC has again been requested to expedite the matter and keep Hon'ble CIC as well as NCW be informed the same.

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3. In the light of the above submissions, the above facts may be placed before the Hon'ble Information Commission to drop the show cause notice issued on the CPIO, NCW.

5. Mr. Anshu Mandal, the CPIO, Damodar Valley Corporation, vide letter dated 12.04.2018, submitted to the Commission as under:-

We are in receipt of above referred Notice on 05/03/2018, regarding the Show Cause Notice contained in the Decision of the Hon'ble Central Information Commissioner dated 12/05/2017 on the appeal of Shri Soumen Sen for which the date of the hearing has been scheduled to be held on 17.04.2018 at a 2:45 p.m. at Nizam palace, Kolkata through video conferencing.

In compliance with the aforesaid Decision; the following submission on the matter is detailed below chronologically for kind perusal and further needful:

1. An application dated 26.06.2016 submitted by Shri Soumen Sen to the National Commission for Women, N. Delhi which was transferred by the Dy.

Secretary, National Commission for Women, New Delhi to CPIO, DVC, Kolkata on 30.05.2017 and received accordingly by the Office of CPIO, DVC on 30.05.2017 through e mail.

2. On receipt of information as sought for from the deemed CPIO, DVC on 23.06.

2017; CPIO, DVC had extended the Information to the appellant Vide letter no. Sectt./CPIO/RTIA-05/17(S.Sen)/2456 dated 23.06.2017 through registered post containing thirty pages, as available with intimation to the Hon'ble Central Information Commissioner and to the Under Secretary, National Commission for Women, New Delhi along with enclosures containing thirty pages.

3. In view of the above, all effort had been made from the DVC end in the line of the direction of the Hon'ble CIC in true spirit and letter to comply with the Decision of the Hon'ble CIC dated 12/05/2017 which was full and final and nothing had been kept pending to be complied with as departmental proceeding is going on under tire Disciplinary Section of DVC, Kolkata.

4. It is, therefore, requested to the Hon'ble Central Information Commission to may kindly drop the appeal/appeals raised before the Hon'ble Commission by Shri Soumen Sen.

6. Mr. K. Lalitha, the CPIO of National Commission for Women vide letter dated 16.04.2018 submitted to the Commission as under:-

(a) A copy of RTI application received on 20.06.2016 in the National Commission for Women at (Annexure).

(b) That since the information of point no. 2 to 6 pertained to Damodar Valley Corporation, the same was transferred by the then CPIO vide letter dated 01.07.2016 to Damodar Valley Corporation.

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(c) Regarding point no. (1) & (6) inputs were sought from the Complaint and Investigation Cell of the Commission vide communication dated 30.06.2016.

(d) That Shri Sen vide letter dated 01.08.2016, preferred the first appeal with the then First Appellate Authority. The First Appellate authority vide letter dated 23.08.2016 admitted the appeal and directed the CPIO to provide the requisite information immediately as per the provisions of the RTI Act, 2005.

(e) Based on the inputs received from the C&I Cell on 16.11.2016, Shri Sen was, vide letter dated 18.11.2016, informed as follows:

Point no. (i) No data is received in this Commission. Point no. (vi) No case is available as per online data record.

(f) That Mr. Sen being aggrieved with the reply of the CPIO, preferred second appeal before the Hon'ble CIC. The matter was heard on 08.05.2017. The Hon'ble Information Commissioner vide communication dated 12.05.2017 issued a show-cause notice to the then CPIO.

(g) That the then CPIO vide letter dated 30.05.2017, furnished his reply to the show-cause notice. A copy of order of Hon'ble CIC along with all communication was again sent to Damodar Valley Corporation for necessary action.

(h) That the DVC vide letter dated 23.06.2017 have furnished the requisite information to Shri Sen.

2. The then CPIO of National Commission for Women had sent the reply to the Hon'ble CIC on 30.05.2017.

3. As would be seen from the foregoing, the National Commission for Women had little or no role to play in such cases, as the National Commission for Women has not been vested with any authority to monitor such cases. It is further submitted that the information sought by Shri Sen has since been furnished by DVC.

4. In view of the above request that the penalty proceedings on the CPIO may be dropped.

Decision:

7. Upon perusal of the records and submission made by the parties, the Commission finds that information has been provided only after the intervention of this Commission and order of the Commission has been complied with. The National Commission for Women claimed that it has promptly transferred the RTI application to the Damodar Valley Corporation and that it had no power to monitor the action taken on such complaints of sexual harassment. It is sad to hear such contention from the apex body that CIC/NCFWO/A/2017/191483 Page 10 is expected to secure the rights of women by goading offices and officers to act at least on complaints. The NCW cannot shirk its responsibility in such cases. The NCW is not a post office to simply forward the complaints to concerned accused office and wash off hands. The Officers should consult the Chairperson and members before making such claims. As sexual harassment cases emerging from the Indian entertainment and media industry under the "MeToo" movement, the NCW on October 10, 2018 appealed to the affected women to lodge written complaints and assured of all possible help. It

said: "The National Commission for Women (NCW) has noticed that in many such cases, victims do not want to go beyond naming and shaming the alleged offenders and lodge formal complaints. In such cases, the commission urges them to lodge written complaints with authorities concerned, including with the NCW." The NCW said that it has taken a serious note of sexual harassment cases reported in the media and strongly condemns any act of invasion of private space of women, adding that it is committed to ensure the safety and dignity of women, including at workplaces. This is the most required measure. This Commission also advise the victim-women to boldly file genuine written complaints.

8. We need to examine what happened in this case, where the victim complained, but she was further victimized, then she filed an RTI Application to NCW, which was simply forwarded to the organization which was harassing her with inaction on her complaint. If this is the plight of giving written complaint, how any woman will come forward to complain?

9. The Commission feels that the NCW should use its powers to consider the media statements of sexual harassment as complaints, as an extra-courage is required to speak to media which gives huge publicity than to write a complaint which silently reaches to NCW without anybody noticing it. The publicity will make the issue noticeable and authorities get alerted, and, if they are sensible might take measures.

10. The Commission and Ministry of WCD should act on the lapses such as public authorities, private bodies and organizations like association of producers or actors might not have any mechanism to receive the complaints of sexual harassment, or internal complaints committees to readily take up CIC/NCFWO/A/2017/191483 Page 11 the complaints for inquiry. Hence the women like Ms Tanushree Dutta find it difficult to get complaints inquired into. It's on record that Artist Association apologised for not addressing the complaint of Tanushree Dutta. Not having complaint-inquiry system is a serious lacuna than the lack of courage in victims to complain. The lack of system discourages even courageous victims to complain. Whether NCW issued notice to Cine & TV Artistes Association CINTAA for sitting over the complaint of Tanushree Dutta for decades, and whether CINTAA takes up now at least? The CINTAA stated: "After going through Ms Tanushree Dutta's complaint, which was filed with the then Executive Committee of CINTAA in March 2008, we feel that the decision taken in the Joint Dispute Settlement Committee of CINTAA & IFTPC (then known as AMPTPP) in July 2008 was not appropriate, as the chief grievance of sexual harassment wasn't even addressed." This is the tragedy of lack of system. The fact that victim in this case left the career itself shows how right to work and right to life of women is violated totally and the Association does not do anything for that member. In April 2018, a TV presenter-turned-

actress Sri Reddy, making sensational allegations against the casting couch menace in the Telugu film industry, registered a protest by stripping in the street of Hyderabad city. Sri Reddy alleged that

she was sexually exploited by many producers and directors and was asked to send inappropriate pictures and videos to get a chance in Telugu films. She told: "They see the videos and give no roles. They have even asked for live nude videos from me. That is the extent to which they go to take advantage of women who seek roles." She was not even given membership in Movie Artists Association; hence they do not receive her complaint.

11. Indian Penal Code Section 376 C is significant. It's relatively new offence, added to crime of Rape in 1983 after Mathura Rape case, where police accused were exonerated by most unreasonable interpretation of consent by the Supreme Court. This new Section 376C penalizes even a consensual sexual intercourse involving a person in authority.

Sexual intercourse by person in authority: 376C. Whoever, being- in a position of authority or in a fiduciary relationship; or b. a public servant; or superintendent or manager of a jail, remand home or other place of custody established by or under any law for the time being in force, or a women's or children's institution; or d. on the management of a hospital or being on the staff of a hospital, abuses such position or fiduciary relationship to induce or seduce any woman either in his custody or under his charge or present in the premises to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with rigorous imprisonment of either description for a term which shall not be less than five years, but which may extend to ten years, and shall also be liable to fine.

Explanation 1.--In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses (a) to (d) of section 375.

Explanation 2. --For the purposes of this section, Explanation I to section 375 shall also be applicable.

Explanation 3.--"Superintendent", in relation to a jail, remand home or other place of custody or a women's or children's institution, includes a person holding any other office in such jail, remand home, place or institution by virtue of which such person can exercise any authority or control over its inmates.

Explanation 4.--The expressions "hospital" and "women's or children's institution" shall respectively have the same meaning as in Explanation to sub- section (2) of section 376.

12. Explanation 3 clearly brings these celebrities in their place of work, into the purview of 'superintendent' and they should have been prosecuted for using their authority to induce the women working under them to surrender/submit to their sexual desires. The Government is under a duty to tell people whether any complaint is filed and anybody was prosecuted under this section. The NCW should examine why complaints are not filed under this section by women. They are bold enough to expose the celebrities, then why not their statements be taken as complaints against commission of cognizable offences and state prosecute them?

13. This means amended law is not made to work and there are no systems in various organizations like Film Industry including regional industries like Telugu Film Industry, Journalists Organizations, to receive complaints of sexual exploitation or harassment. Such lacunae will create a sort of immunity to accused celebrities such as Film/TV Stars, Sports persons, CEOs, top Scientists or Journalists, and dominant personalities occupying public offices like Ministers and Senior Officers or Chairmen etc. These big men come with battery of attorneys to slap defamation cases which naturally silence the voices.

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14. In this case the DVC was alleged to have breaching all rights and norms prescribed by 2013 Act and Guidelines of Department of WCD. This is where the NCW has to come to the rescue of victims and take steps to create systems. It has a duty of ensuring the systems to be in place to receive and act on complaints. The constitutional bodies like NCW should not ignore such worst violations of human rights of women around.

15. The Commission is surprised why the NCW or Ministry of Women and Child Development did not consider that even among the media organizations or associations there is no system in place to receive and act on sexual harassment complaints. If celebrity senior journalists are accused of such conduct, where the junior woman journalists have to go? Whether Press Council has ICC to receive such complaints? Whether National Journalists Association has such system to receive and act? It's a shame that the directions of honourable Supreme Court in Visakha case (AIR 1997 SC 3011 dated August 13) and Apparel Export Promotion Council v AK Chopra (AIR 1999 SC 625) are not implemented by the Union government for 16 years till law is made in 2013, while some organizations did not constitute ICCs till now. The metoo storm that is being witnessed now is due to non-implementation of these directions and Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act 2013 besides ignoring Convention on the Elimination of all Forms of Discrimination Against Women, which was ratified by India on June 25, 1993. Question is not just about Tanushree Dutta, whether film industry at Mumbai and regional film industries in their regions has any organization to receive the complaints from victims?

16. The Commission strongly recommends the NCW and Ministry of Women and Child Development to study and examine whether systems to receive and inquire into complaints were put in place at various organizations, councils, associations, federations, courts, companies and corporations, if not why, and why not they submit annual reports etc. and take necessary steps to enforce the 2013 law and prosecute offenders under Section 376C of IPC.

17. Another major reason for the culture of silent suffering by the women- victims is the further victimization of victim of sexual harassment. Example on hand is physical attack on the car of Tanushree Dutta and wife of appellant in CIC/NCFWO/A/2017/191483 Page 14 this case. With the unified strength all the officers and employees protect the accused officer, who will enjoy all privileges without any impunity, while all of them harass the victim. The Ministry of Women and Child Development has duty to prevent this and the NCW has to review how the applicant before them could be secured from this kind harassment of victims. The NCW should take note on their

own, and question authorities in such incidents.

This case stands out as an example. The woman, who complain to NCW or ICC of organization or to the head of the organization should be considered as whistle blower and should be given protection from harassment by authorities or superiors. The victim or witness-women if they are on contract employment or from the outsourced organization, the public authority or organization do not extend their term of employment. This also should be considered as victimization of victim-complainant and the State or NCW should come to their rescue.

18. The Commission considers that the Government has to seriously think about actions on alleged perpetrators of sexual harassment during the pendency of inquiry. Such accused persons should not be allowed to hold on to positions in power in order to prevent abuse of their power to deter the witnesses or slapping law suits to stop them from complaining. Unless allegation is substantially disproved those accused persons should not be allowed to continue in their office. There is a phenomenon that a strategic lawsuit against public participation (SLAPP) will be filed. SLAPP is a lawsuit intended to censor, intimidate, and silence critics by burdening them with the cost of a legal defense until they abandon their criticism or opposition.

19. The Commission directs the respondent authority DVC in this case not to resort to victimization of this victim, wife of applicant, and restore her rights, place of work and her dignity, which she should not loose simply because she complained against sexual harassment allegedly by a powerful officer in their public authority and filed RTI applications. The Commission recommends the NCW to take necessary measures to prevent such victimization of victims, and also seek explanation from DVC in this case.

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20. The Commission records appreciation for the Ministry of Women and Child Development for contemplating to set up a committee of senior judicial and legal persons to look into the issues that are coming out of the #MeToo movement. This committee is expected to look into the legal and institutional framework which is in place for handling complaints of sexual harassment at work including some of the complaints if required and advise the WCD Ministry on how to strengthen these frameworks. The Commission recommends the Ministry of WCD and the prospective Committee to be constituted to consider the above points to strengthen the system or introducing it if not, of receiving and acting on complaints within fixed time frame and to prevent further harassment of victim.

21. The NCW and Ministry of Women and Child Development have a role, they cannot abdicate this constitutional responsibility of protecting the rights of women from being violated because of non-conducive atmosphere which prevent victims from even reporting and lack of system that facilitates criminal celebrities to enjoy undue immunity.

For such wrongful claims, and not giving any useful information to the victim complainant in this case, penalty should be imposed. But in this case poor PIO will be subjected to penalty because

taking action was not within his hands and under RTI it is not possible to punish top officers for their inaction. Hence penalty proceedings against PIO of NCW are dropped.

22. Appellant's wife was victimised for complaining against. The powerful lobby promoted the accused and harassed the victim by transferring her to different places, while there are scores of employees settled in one place for decades. To consider the role of the officers of the Damodar Valley Corporation, the following paragraph of appellant's submission needs to be repeated.

Lastly, my wife has been debarred from her promotion this year unduly due to the biased lobby again and Mr. Sambhu Das had not only being promoted unduly in 2013 as EE (Commn), even though the case was pending since 2012 he has been posted in his favourite place of posting since 2015 and going to get another promotion shortly. The biased lobby is in full action to declare the case null and void and harass my wife in all aspects throughout her service life and pay the price of complaining against her superior bosses and biased lobby.

CIC/NCFWO/A/2017/191483 Page 16 For years there is no inquiry, and she was victimised for complaining, she sought help from NCW, which simply forwarded. This is how a victim is silenced by system, inaction, lethargy and victimization. When constitutional organizations like NCW fail, legal systems do not start its course, the victims have to resort to media including social media. Result is metoo storm.

23. The Commission also finds that the DVC neither gave any written explanations nor given any justified oral submissions with regard to the compensation notice issued to them. The appellant and his wife were harassed for complaining against sexual harassment and also for filing RTI application/ appeal. They were denied the information and still they got only incomplete information. DVC is as lethargic as possible in acting on her complaint and giving information while they were overactive in victimising the appellant's wife and enthusiastic in protecting the accused. The appellant couple were suffering loss and detriment to her rights. Under Section 19(8) (b) the Commission has power to require the public authority to compensate the complainant for "any loss or detriment suffered". Invoking this provision the Commission directs the public authority of Damoder Valley Corporation, to provide a compensation of Rs. 1,00,000/- (one lakh) for the harassment caused to the appellant causing loss of her peace, troubling her with transfers, and causing her to suffer detriment of right to work and right to life by its lethargy in not acting on her complaint besides victimising her for complaining and filing RTI requests through her husband, before October 31.

24. The Commission also imposes penalty on the CPIO Mr. Anshuman Mandal, under Section 20 of the RTI Act. The penalty amount of Rs. 25,000/- (twenty five thousand) shall be deducted by the Public Authority from the salary of the CPIO Mr. Anshuman Mandal by way of demand draft drawn in favour of "PAO CAT", New Delhi in 5 equal monthly instalments and forward the demand drafts addressed to Deputy Registrar (CR-II), email: dyregcr2- cic@gov.in Room No. 106, First Floor, Central Information Commission, Baba Gangnath Marg, Munirka, New Delhi-110067. The first instalment should reach the Commission by 20.12.2018 and the last instalment should reach by 20.05.2019.

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25. The Commission recommends the NCW to take appropriate measures to ensure establishment of a functional system in such a big organization like the DVC to receive and act on complaints of sexual harassment in prescribed time frame and take necessary action if it fails. Disposed of.

Sd/-

(M. Sridhar Acharyulu)
Central Information Commissioner

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